

Court No. - 29

Case :- WRIT - C No. - 26322 of 2022

Petitioner :- Heera Lal Prajapati

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Gyanendra Kumar Singh

Counsel for Respondent :- C.S.C., Chetan Chatterjee

Hon'ble Manoj Misra, J.

Hon'ble Mohd. Azhar Husain Idrisi, J.

Heard learned counsel for the petitioner; learned Standing Counsel for the respondent no.1; and Sri Chetan Chatterjee for the respondents 2, 3 and 4.

Considering the nature of the order we propose to pass, the learned counsel for the respondents do not pray for time to file counter affidavit.

The prayer in this petition is to quash the notices dated 19.02.2021 and 16.03.2021 issued by the third respondent.

The first notice dated 19.02.2021 makes a provisional assessment whereas the second notice requires the petitioner to make a deposit of a certain amount.

The contention of the learned counsel for the petitioner is that the reply submitted by the petitioner has not been addressed and no final assessment has yet been made in accordance with law therefore, the notice dated 16.03.2021 requiring him to make deposit of a certain sum of money is not justified.

Considering the submissions made and the contents of the notice dated 16.03.2021, we deem it appropriate to dispose off this petition by directing the third respondent (Executive Engineer, Electricity Distribution Division-3, Purvanchal Vidyut Vitran Nigam Ltd, Ballia) to decide the representation of the petitioner against the provisional notice by a speaking order. In the event of a final assessment being passed, the petitioner will have a right to file an appeal under clause 6.8 (d) of the U.P. Electricity Supply Code, 2005 read with Section 127 of the Electricity Act. In the meantime, it is provided that if the petitioner submits a copy of the representation submitted by him along with a copy of this order before the third respondent, within two weeks from today, the third respondent shall decide the matter, as directed above, within next four weeks. Till a decision is taken on the representation of the petitioner, as directed above, no coercive action shall be taken against the petitioner to realize the amount as demanded by notice dated 16.03.2021.

The petition stands **disposed off**.

It is made clear that we have not expressed any opinion on the merits of the case.

Order Date :- 6.9.2022

AKShukla/-